

7.

CASE #	CASE NAME	HEARING NAME
CVRI2505646	FLETCHER vs RIVERSIDE HEALTHCARE & WELLNESS CENTRE, LLC	MOTION TO COMPEL RESPONSES OF PLAINTIFF KIMBERLY NAUCLER AS SUCCESSOR-IN INTEREST TO KAELYNN FLETCHER TO DEFENDANT'S SPECIAL INTERROGATORIES, SET ONE

Tentative Ruling:

See #4 above

8.

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Tentative Ruling:

See #4 above

9.

CASE #	CASE NAME	HEARING NAME
CVRI2601725	LUA vs PLATINUM SALES AND SERVICES, INC.	DEMURRER ON COMPLAINT FOR OTHER CONTRACT

Tentative Ruling:

Factual / Procedural Context

On December 12, 2025, Plaintiff Luis Lua purchased a 2020 Toyota Tacoma Double Cab ("vehicle") from Defendant Platinum Sales and Services, Inc. ("Platinum"). Defendant Jet Insurance Company ("Jet Insurance") issued a bond to Platinum as required to sell vehicles under Vehicle Code § 11710. Plaintiff alleges Platinum represented it could and would register and title the vehicle to Plaintiff, but it failed to do so. Platinum also

represented that the vehicle was inspected and had no problems. However, at the time of purchase, the braking system was substantially worn and the battery needed to be replaced. Plaintiff would not have purchased the vehicle if he had known that Platinum would not or could not register and title or that the vehicle was in an unsafe condition.

On March 18, 2026, Plaintiff filed this action alleging seven (7) causes of action: 1.) Violation of the Consumers Legal Remedies Act, Civil Code § 1750, et seq.; 2.) Civil Theft – Violation of Penal Code § 496; 3.) Fraud & Deceit; 4.) Negligent Misrepresentation; 5.) Violation of Vehicle Code § 5753; 6.) Violation of the Unfair Competition Law, Business & Professions Code § 17200, et seq.; and 7.) Violation of Vehicle Code § 11711.

Jet Insurance now demurs to the 7th cause of action for Violation of Vehicle Code § 11711 (the only claim asserted against it) on the ground it fails to state facts sufficient to constitute a cause of action and is uncertain. (C.C.P., § 430.109(e), (f).)

Jet Insurance also separately moves to strike prayers for rescission and restitution; actual damages; incidental and consequential damages; punitive damages and civil penalty where available; equitable and injunctive relief permitted under Civil Code §§ 1780 and 1794 and Business & Professions Code § 17200; reasonable attorneys' fees and costs of suit as permitted by law (including, but not limited to, Civil Code § 1780(e); Penal Code § 496(c); Vehicle Code § 5753; Code of Civil Procedure § 1021.5; and the bond company claims). (C.C.P., §§ 435-436.)

Analysis

I. Meet and Confer

Code of Civil Procedure sections 430.41 and 435.5 requires a meet and confer process via **phone, videoconferencing or in person** before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (*Id.* at §§ 430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* at §§ 430.41(a)(3), 435.5(a)(3).) Here, counsel declares he sent a letter via email requesting to meet and confer and outlining the alleged deficiencies and Plaintiff's counsel did not respond. (Gascon Decl., ¶¶ 5-8.) This is minimally sufficient.

II. Demurrer

A. Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; C.C.P., § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts-- that is, the facts needed to establish each element of the cause of action pleaded. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 212, superseded by statute as stated in *Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242.) "[E]ach evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, "does not admit contentions, deductions or conclusions of fact or law." (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

B. 7th Cause of Action: Violation of Vehicle Code section 11711

Jet Insurance challenges the sole cause of action asserted against it on grounds of insufficiently articulated fraud.

Under Veh. Code, section 11711:

(a) If any person (1) shall suffer any loss or damage by reason of any fraud practiced on him or fraudulent representation made to him by a licensed dealer or one of such dealer's salesmen acting for the dealer, in his behalf, or within the scope of the employment of such salesman and such person has possession of a written instrument furnished by the licensee, containing stipulated provisions and guarantees which the person believes have been violated by the licensee, or (2) if any person shall suffer any loss or damage by reason of the violation by such dealer or salesman of any of the provisions of Division 3 (commencing with Section 4000) of this code, or (3) if any person is not paid for a vehicle sold to and purchased by a licensee, then any such person shall have a right of action against such dealer, his salesman, and the surety upon the dealer's bond, in an amount not to exceed the value of the vehicle purchased from or sold to the dealer.

...

...

(e) The claims of any person under subdivision (a) who is not a licensee shall be satisfied first and entitled to preference over all other claims under subdivision (a).

(Veh. Code, § 11711.)

Plaintiff here alleges his claims under subdivisions (a)(1) and (2). Under (a)(1), “[a] reading of section 11711 readily discloses that in order to recover for loss or damage by reason of any fraud practiced on him or fraudulent representation made to him by a licensed bonded dealer, the plaintiff must have a writing furnished by the licensee containing stipulated provisions and guarantees which plaintiff believes have been violated by the licensee. Where, as here, a general demurrer is filed, and reference is made to Code of Civil Procedure, section 430, subdivision 6, the plaintiff is put on notice that he must amend his complaint to show that such guarantees were in writing in order to bring him within the purview of the code section. A plaintiff’s failure to so amend is ground for dismissal upon defendant’s motion.” (*Krebs v. Travelers Indem. Co.* (1961) 192 Cal.App.2d 83, 85, citing Code of Civ. Proc., § 581, subd. 3.)

Here, as Jet Insurance argues, Plaintiff has failed to adequately alleged fraud as contemplated by the statute. Sections 11710 and 11711 use “fraud” and “fraudulent representation” in their normal legal sense, as defined by Civil Code sections 1571–1573 and related fraud cases. (*Beverly Finance Co. v. American Casualty Co.* (1969) 273 Cal.App.2d 259, 267–68.) The elements of fraud are well established: “(1) misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity (scienter); (3) intent to defraud (i.e., to induce reliance); (4) justifiable reliance; and (5) resulting damage.” (*Behnke v. State Farm Gen. Ins. Co.* (2011) 196 Cal.App.4th 1443.) Fraud must be pleaded with specificity; general and conclusory allegations do not suffice. (*Tenet Healthsystem Desert, Inc. v. Blue Cross of Cal.* (2016) 245 Cal.App.4th 821.) This particularity requirement “necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered.’” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631.) The complaint does not allege fraud with the requisite specificity or particularity. (See e.g. Comp., ¶¶ 34-40, 77.) I recommend the Court sustain the demurrer with leave to amend.

To the extent Plaintiff also alleges a violation of subdivision (a)(2) “by failing to register the 2020 Toyota Tacoma or transfer title to it to Plaintiff, thus violating Division 3.” As Jet Insurance argues, this is a legal conclusion, not a factual allegation. (*Mendoza v. JPMorgan Chase Bank, N.A.* (2016) 6 Cal.App.5th 802, 810 [court assumes truth of the complaint’s factual allegations but not its legal conclusions].) Plaintiff’s reliance on incorporation is also unavailing. The Vehicle Code section 5753 cause of action is not asserted against Jet Insurance, and Plaintiff does not allege in the 7th Cause of Action itself which specific Division 3 provision was violated, what conduct constituted the violation, or how that statutory violation caused a covered bond loss. Accordingly, the Court sustains the demurrer, and grants leave to amend within 30 days.

III. Motion to Strike

Given the ruling to sustain the demurrer with leave to amend, the motion to strike is moot.